

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF KAPRANOV AND OTHERS v. RUSSIA

(Applications nos. 81852/17 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

30 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Kapranov and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of disproportionate measures taken against them as participants of public assemblies in Moscow. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of

interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

12. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-23, 10 April 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of the organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, related to examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

IV. REMANING COMPLAINTS

13. Having regard to its findings above, the Court does not consider it necessary to examine separately the remaining complaints raised by some of the applicants under Article 6 of the Convention about the fairness of the administrative-offence proceedings in their cases.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints under Article 11 of the Convention concerning the interference with the applicants' freedom of assembly and the other complaints under the well-established case-law of the Court (as indicated in the appended table) admissible and *decides* that there is no need to examine separately the remaining complaints under Article 6 of the Convention about other aspects of the fairness of the administrative-offence proceedings;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 30 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention (disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Date	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
1.	81852/17 22/11/2017 and 11048/20 07/02/2020	**Denis Vasilyevich KAPRANOV** 1981	Memorial Human Rights Centre Moscow	Anti-corruption manifestation 26/03/2017 Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 10,000	23/05/2017 04/10/2019	Art. 5 (1) – two counts of escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances": 1) From 4.40 p.m. to 9.45 p.m. on 26/03/2017, the time indicated in the records was at variance with the actual time of escorting and detention, 2) From 2.45 p.m. to 10.00 p.m. on 03/08/2019; the record of administrative offence was only drawn up on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – two final decisions: Moscow City Court, 23/05/2017 and 04/10/2019	5,000
2.	60695/19 08/11/2019	**Nikolay Aleksandrovich CHUDAYEV** 1994	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/08/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. to 7.20 p.m. on 27/07/2019, while the record of administrative offence was only drawn up on 29/07/2019; absence of escorting report and no indication of the time of escorting to the police station and of the time of release; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/08/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Date	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
3.	65169/19 18/12/2019	**Vladimir Petrovich KULESHOV** 1986	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	04/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.05 p.m. to 10.05 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 04/09/2019	4,000
4.	65185/19 18/12/2019	**Anastasiya Yuryevna SHUKSHINA** 1996	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	24/09/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.40 p.m. to 11.00 p.m. on 03/08/2019, raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 24/09/2019	4,000
5.	10981/20 07/02/2020	**Stanislav Sergeyevich ALKHASOV** 1990	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	14/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.45 p.m. on 03/08/2019 to 3.30 a.m. on 04/08/2019; the applicant spent more than 5 hours in the police van before having been brought to the police station; the record of administrative offence was only drawn up on 06/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/10/2019	4,000

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6.	11436/20 07/02/2020	**Yaroslav Igorevich VIRCHIK** 1993	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	24/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 24/10/2019	3,500
7.	14102/20 20/02/2020	**Anastasiya Leonidovna ZYUBINA** 1995	Balog Natalya Andreyevna Krasnoyarsk	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	22/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.48 p.m. on 03/08/2019 to 2.00 a.m. on 04/08/2019; the escorting report was at variance with the actual time of the escorting; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 22/10/2019	4,000
8.	15295/20 11/03/2020	**Sergey Aleksandrovich TURUSHIN** 1986	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	12/09/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence (the applicant was escorted at 5.45 p.m. on 03/08/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/09/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Date	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
9.	17826/20 30/03/2020	**Aleksandra Yuryevna POLYAK** 1970	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	24/10/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. on 03/08/2019 to 3.00 a.m. on 04/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 24/10/2019	4,000
10.	17829/20 30/03/2020	**Aleksandr Sergovich YEFREMOV** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	12/11/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence, from 7.30 p.m. to 9.04 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 12/11/2019	4,000
11.	17831/20 30/03/2020	**Pavel Anatolyevich PONOMAREV** 1977	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	14/01/2020	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. on 03/08/2019 to 2.00 a.m. on 04/08/2019; the applicant spent more than 3 hours in the police van before having been brought to the police station; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 14/01/2020	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Date	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
12.	17832/20 30/03/2020	**Maksim Aleksandrovich MOSHCHENKO** 1998	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	06/11/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.50 p.m. on 03/08/2019 to 01.00 a.m. on 04/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 06/11/2019	4,000
13.	17833/20 30/03/2020	**Aleksandr Vladimirovich ZABROVSKIY** 1999	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	28/11/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.50 p.m. on 03/08/2019 to 00.40 a.m. on 04/08/2019; the record of the administrative offence was drawn up only on 06/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/11/2019	4,000
14.	17835/20 30/03/2020	**Kirill Alekseyevich MARTYNENKO** 1995	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	28/11/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.35 p.m. on 03/08/2019 to 02.00 a.m. on 04/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/11/2019	4,000

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15.	17888/20 30/03/2020	**Natalya Aleksandrovna SAVOSTINA** 1976	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	18/10/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 5.30 p.m. on 03/08/2019 to 02.20 a.m. on 04/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 18/10/2019	4,000
16.	18155/20 11/03/2020	**Sergey Alekseyevich YERMOLAYEV** 1987	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	16/09/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.00 p.m. to 11.10 p.m. on 03/08/2019; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/09/2019	4,000
17.	19121/20 23/03/2020	**Oleg Ravilyevich SABITOV** 1994	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	10/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.15 p.m. to 10.00 p.m. on 03/08/2019; the record of administrative offence was only drawn up on 06/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 10/10/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Date	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
18.	19124/20 23/03/2020	**Vadim Yevgenyevich BOLSHAKOV** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	30/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 3.00 p.m. to 10.00 p.m. on 03/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 30/10/2019	4,000
19.	19556/20 23/03/2020	**Kirill Dmitriyevich BALAK** 1995	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	28/10/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 2.40 p.m. to 10.20 p.m. on 03/08/2019; the record of administrative offence was only drawn up on 06/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 28/10/2019	4,000
20.	19770/20 25/03/2020	**Irina Aleksandrovna SISEYKINA** 1975	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma 03/08/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	02/12/2019	Art. 5 (1) - escorting to the police station for the sole purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 4.30 p.m. on 03/08/2019 to 01.20 a.m. on 04/08/2019; absence of an arrest report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 02/12/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Date	Administrative charges	Penalty	Final decision Moscow City Court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses (in euros)[1]
21.	32043/20 23/07/2020	**Yevgeniy Romanovich DEGTYAREV** 1985	Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	16/12/2019	Art. 5 (1) - escorting to the police station for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours and without "exceptional circumstances", from 8.00 p.m. on 27/07/2019 to 7.00 p.m. on 29/07/2019, the applicant remained in detention even after the record of administrative offence was drawn up, on 28/07/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings – final decision: Moscow City Court, 16/12/2019	5,000

[1] Plus any tax that may be chargeable to the applicants.